

26STCV16630 26STCV16630

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 26STCV16630 Hearing Date: July 21, 2026 Dept: 833

Melita Church, et. al. Case No. 26STCV16630

v.

Hearing:

July 21, 2026

Location:

Stanley Mosk Courthouse

Department:

833 Yong Hee Kim, et. al. Judge:

Joseph Lipner

Order Regarding Validity of Election

Plaintiffs

Melita Church, Young Soo Park, David Y. Yeon, and Sin Kyun Kim ("Plaintiffs")

request that the Court determine that Young Soo Park, David Y. Jeon, and Sin Kyun Kim are the lawful directors and governing authorities of Melita Church.

Plaintiffs further request that the Court determine that Defendants Yong Hee Kim, Doo Hyun Kim, Dae Ho Shin, Jung Tae Kim, and Yong Sik Kim (collectively, "Defendants") were not validly elected or appointed as members or directors at the May 24, 2026 congregational meeting.

The

Court DENIES Plaintiffs application. Plaintiffs base their entire petition on

the assertion that Melita Church is a member of the Western Presbytery of the World Presbyterian Church. However, Plaintiffs

have not submitted sufficient admissible evidence to demonstrate that this fundamental assertion is true. For that reason, Plaintiffs' application fails.

The Court also DENIES Defendants' ex parte application filed on July 17, 2026. The ex parte requests an opportunity to submit additional evidence to respond to new evidence submitted on reply. However, the Court declines to consider the new evidence submitted by Plaintiffs on reply and accordingly will not consider the responsive evidence and surreply lodged by Defendants.

LEGAL STANDARD

Upon the filing of an action therefor by any director or member, or by any person who had the right to vote in the election at issue after such director, member, or person has exhausted any remedies provided in the articles or bylaws, the superior court of the proper county shall determine the validity of any election or appointment of any director of any corporation. (Corporations Code § 9418, subd. (a).)

The court, in conformity with the articles and bylaws of the corporation to the extent feasible, may determine that the person entitled to the office of director or may order a new election to be held or appointment to be made, may determine the validity of membership and the right of persons to vote, and may direct such other relief as is just and proper. (Corporations Code § 9418, subd. (c).)

DISCUSSION

A.

Judicial

Notice

The Court GRANTS the request for judicial notice.

B.

Evidentiary

Objections

The parties have submitted extensive documents, declarations, and objections to the other side's evidence.

The presentation of these records is haphazard and difficult to follow.

Plaintiffs'

evidence, for example, contains many exhibits which are partly in Korean and partly in English. It is by no means clear to the Court whether the English was part of the original document, or whether the English text is nothing other than an uncertified, informal translation of the Korean document. There are portions of the evidentiary rulings below in which the Court states that it overrules the objection as to the English part of the document. The Court discusses those portions in this order and explains why they are not persuasive. However, to the extent that they are merely uncertified and informal translations of the Korean documents, they are entirely inadmissible.

Defendants raised 8

objections to the declaration submitted by Gon Kim.

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Sustained: 7 (lack of sworn and certified translations; lacks personal knowledge, hearsay); 9 (lack of sworn and certified translations; lacks personal knowledge, hearsay); 10 (lack of sworn and certified translations; lacks personal knowledge, hearsay)

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Overruled: 6 (the English parts), 8, 12, 13 (the English parts), 14

Defendants raised 18

objections to the declaration submitted by Sin Kyun Kim.

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Sustained: 10 (lacks personal knowledge, foundation), 11 (lacks personal knowledge, speculative), 12 (lack of sworn and certified translations, authentication), 13 (lack of sworn and certified translations, authentication), 14 (lack of sworn and certified translations), 15 (lack of sworn and certified translations), 16 (lacks foundation, lack of completeness, Best Evidence Rule, lack of authentication), 23 (Best Evidence Rule, lack of completeness),

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Overruled: 5 (the English parts), 7 (the

English parts), 9 (the English parts), 17, 18, 19, 20, 21, 22, 24 (as to Exhibit 9, 10, 11, 12)

Defendants raised 15 objections to the declaration submitted by David Jeon.

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Sustained: 9 (opinion testimony, Best Evidence Rule), 10 (opinion testimony, Best Evidence Rule), 11 (lack of sworn and certified translations), 12 (lack of sworn and certified translations), 13 (lack of sworn and certified translations, irrelevant, lack of foundation), 14 (lack of sworn and certified translations, Best Evidence Rule), 15 (lack of sworn and certified translations, lacks personal knowledge, improper opinion testimony, Best Evidence Rule), 16 (lack of sworn and certified translations, lacks personal knowledge), 17 (lack of sworn and certified translations, lacks personal knowledge, improper opinion testimony), 22 (lack of corroboration), 23 (best evidence rule, hearsay)

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Overruled: 7, 8, 20, 21

Defendants raised 27 objections to the declaration submitted by Young Soo Park.

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Sustained: 4 (opinion testimony, Best Evidence Rule), 6 (Best Evidence Rule), 7 (speculation), 8 (hearsay, personal knowledge), 10 (personal knowledge, foundation, hearsay, sworn translations), 11 (hearsay, Best Evidence Rule, foundation, lack of translations), 12 (Best Evidence Rule), 13 (opinion testimony, foundation and authentication, lacks personal knowledge), 14 (lacks personal knowledge, improper testimony, lack of completeness), 15 (lack of sworn and certified translations, irrelevant), 16 (lack of sworn and certified translations, personal knowledge), 17 (improper opinion testimony, lack of sworn and certified translations), 18 (lack of sworn and certified translations, Best Evidence Rule), 19 (lack of completeness, Best Evidence Rule), 20 (lack of sworn and certified translations), 21 (best evidence rule), 22 (lack of sworn and certified translations), 23 (opinion testimony, best evidence rule), 24 (opinion testimony, best evidence rule, lack of sworn and certified translations), 26 (lack personal knowledge), 27 (lack of personal knowledge, lack of sworn and certified translations), 30 (improper

opinion testimony, speculation, and legal conclusion), 31 (best evidence rule, improper opinion), 32 (best evidence rule, improper opinion testimony),

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Overruled: 5 (the part in English), 28
(the parts in English), 29

Defendants raised 1
objection to the declaration submitted by W. Dan Lee.

.

Sustained: 5 (authentication)

Plaintiffs raised 16
objections to the declaration of Yong Hee Kim.

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Sustained: 1 (foundation), 2 (foundation, lay opinion, hearsay, legal conclusion), 6 (hearsay, legal conclusion), 7 (hearsay, lacks foundation, opinion), 8 (hearsay, best evidence rule, legal conclusion, lacks foundation), 9 (hearsay, lacks foundation), 10 (legal conclusion to the extent that it is called "extraordinary"), 14 (best evidence rule, hearsay), 15 (best evidence rule, hearsay, foundation, legal conclusion), 16 (foundation)

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Overruled: 3, 4, 5, 10 (that a congregation meeting was held), 11, 12, 13

Plaintiffs raised 12
objections to the declaration of Kyu Nam Ko.

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Sustained: 17 (improper opinion, legal conclusion), 19 (lacks foundation, speculative), 20 (improper opinion, legal conclusion), 21 (improper opinion, legal conclusion), 22 (lacks foundation, opinion), 23 (lacks foundation, speculative, opinion), 24 (lacks foundation, speculation, assumes facts not in evidence), 25 (lacks foundation, opinion), 26 (lacks foundation, opinion, speculative), 28 (lacks foundation, opinion),

.
Overruled: 18, 27

Plaintiffs raised 14

objections to the Declaration of Dong Kyu Kim.

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Sustained: 30 (improper legal conclusion, improper lay opinion, foundation), 32 (speculation, foundation), 33 (hearsay), 35 (improper opinion, argumentative), 36 (improper opinion, best evidence rule), 37 (authentication, foundation), 39 (best evidence rule), 41 (authentication), 42 (hearsay)

.
Overruled: 29, 31, 34, 38, 40

Plaintiffs raised 12

objections to the Declaration of Havila Hong.

.
Sustained: 45 (improper legal conclusion), 46 (hearsay, speculation), 48 (hearsay, Best Evidence Rule), 49 (hearsay, foundation), 50 (hearsay), 51 (hearsay), 53 (lacks foundation, speculation), 54 (lacks foundation, speculation, opinion, best evidence rule)

.
Overruled: 43, 44, 47, 52

Plaintiffs raised 9

objections to the Declaration of Lisa Yang.

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Sustained: 55 (hearsay, speculation, foundation), 56 (irrelevant), 57 (lacks foundation, speculation), 58 (Irrelevant), 59 (lacks foundation, speculation), 60 (irrelevant), 61 (improper legal argument), 62 (irrelevant), 63 (irrelevant)

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Overruled: None

Plaintiffs raised 21

objections to the exhibits Defendants introduced.

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Sustained: 1 (hearsay), 7 (hearsay, foundation), 12 (foundation, hearsay, authentication), 13 (authentication), 14 (foundation, personal knowledge, hearsay), 15 (foundation, authentication, hearsay). The remaining objections need not be ruled on because they are covered within Objections 1, 7, 12, 13, 14, and 15.

C.

Summary
of Facts

The World Presbyterian Church ("WPC") is organized according to Presbyterian polity. (Sin Hyun Kim Decl., ¶ 5.) It is not a not a collection of autonomous or independent congregations but a connectional denomination governed through a series of ecclesiastical courts and governing bodies. (Sin Hyun Kim Decl., ¶ 5.) Under this structure, local churches are governed by Sessions, Sessions are subject to the oversight and authority of Presbyteries, and Presbyteries are accountable to the General Assembly. (Sin Hyun Kim Decl., ¶ 5.) When a church is without a pastor, the Presbytery to which the church belongs appoints a minister until a pastor is installed. (Gon Kim Decl., ¶ 6.)

The Western Presbytery ("Presbytery") is one of the governing Presbyteries of the WPC and exercises ecclesiastical authority over ministers, Sessions, elders, and member churches within its jurisdiction. (Sin Hyun Kim Decl., ¶ 5.) The Book of Church Order ("BOCO") grants the Presbytery general oversight over sessions, local congregations, ministers, evangelists, candidates for ministry, and unorganized churches within its bounds. (Gon Kim Decl., ¶ 6.) It also grants the Presbytery authority to found, divide, unite, and close local churches; organize sessions; invite pastors for local churches; supervise evangelism; and direct other matters pertaining to finance. (Gon Kim Decl., ¶ 6.)

Member churches voluntarily affiliate with the Presbytery, and by doing so, agree to be governed by the constitutional structure of the denomination. (Sin Hyun Kim Decl., ¶ 6.) When an internal dispute arises within a local church concerning membership in the Presbytery or

ownership of church property, the right to manage church property shall temporarily be placed in the hands of the Presbytery until the dispute is resolved and normal operations are restored. (Gon Kim Decl., ¶ 6.)

In 2021, Melita Church, located at 1901 Beverly Blvd., Los Angeles, California 90057, sought admission or readmission to the Western Presbytery. (Sin Hyun Kim Decl., ¶ 9.) Defendants, however, claim that the document purporting to be this application is a fabrication. (Kyu Nam Ko Decl. ¶ 6.) To the extent the document is admissible at all and is not a fabrication, there is little admissible evidence explaining what the response was to this request.

At the April 13, 2026 meeting of the Western Presbytery, Elder Young Soo Park came forth and explained that Melita Church has never considered or discussed it joining the Western Presbytery as a member, and therefore, Melita Church has never been a member of the Western Presbytery. (Dong Kyu Lee Decl., ¶¶ 3-4.) Pastor Gap Shik Chung confirmed that because no membership application was submitted by Melita Church, it cannot be a member. (Don Kyu Lee Decl., ¶¶ 3-4.) Pastor Gap Shik Chung's opinion was confirmed by other members in attendance. (Don Kyu Lee Decl., ¶ 7.) The minutes of the meeting did not reflect the agreement about Melita Church's independent status. (Don Kyu Lee Decl., ¶ 9.) Western Presbytery later issued a statement saying that the situation discussed about Melita Church was deleted when adopting the minutes. (Don Kyu Lee Decl., ¶ 10.)

On or about April 30, 2026, the Western Presbytery resolved to expel Reverend Kuy Nam Ko from his role as Pastor of Melita Church. (Sin Hyun Kim Decl., ¶ 17.) The Presbytery established an interim Session and appointed leadership for Melita Church. (Sin Hyun Kim Decl., ¶ 18.) Reverend Jung Gi Na would serve as Interim Moderator; Elder Young Soo Park would serve as Clerk of Session and Reverend Kap Sik Chung would serve as Interim Session Minister. (Sin Hyun Kim Decl., ¶ 18.) The Western Presbytery also determined that the interim Session would exercise authority concerning church finances, administration, and personnel matters. (Sin Hyun Kim Decl., ¶ 18.)

A May 3, 2026 certificate says that Melita Church is an affiliated member of the Western Presbytery of USA. (Sin Hyun Kim Decl., ¶ 22.)

On May 12, 2026, the Presbytery appointed Rev. David Yong Seong Jeon as Temporary Moderator of the Session and organized the Session as follows: (1) Temporary Moderator: Plaintiff Rev. Jeon; (2) Clerk of the Session: Plaintiff Elder Park; and (3) Temporary Session Member: Plaintiff Rev. Kim, Stated Clerk of the Western Presbytery of U.S.A. As a result, the governing Session of Melita Church consisted of Rev. Jeon, Elder Park, and Rev. Kim as of May 12, 2026. (Sin Hyun Kim Decl. ¶ 21.)

However, on May 24, 2026, congregates held a meeting, and voted in a Temporary Congregational Governance Committee to be chaired by Yong Hee Kim and Dae Ho Shin. (Yong Hee Kim Decl., ¶ 5.) Individuals from the Presbytery came to Melita Church, and LAPD was called. (Hong Decl., ¶ 17.)

D. Analysis

The operation of the First and Fourteenth Amendments of the United States Constitution mandates that courts defer to the decisions of ecclesiastical courts or tribunals when such bodies make determinations which touch and concern matters of religious doctrine, including the governance, administration, and adjudication of the internal affairs of ecclesiastical institutions. (See, e.g., *Serbian Eastern Orthodox Diocese v. Milivojevich* (1976) 426 U.S. 696, 724-25; *Korean United Presbyterian Church v. Presbytery of the Pacific* (1991) 230 Cal.App.3d 480, 502; *Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1089.)

A religious organization's constitution and bylaws includes its canons, constitutions, rules of other bodies, church traditions if sufficiently ascertainable, rules of a religious superior, and similar sources. (*In re Episcopal Cases* (2009) 45 Cal.4th 467, 484; *New v. Kroger* (2008) 167 Cal.App.4th 800, 822 [citations omitted].) The selection and termination of clergy or ecclesiastical leadership should be essentially off-limits to the courts. (*Silo v. CHW Medical Foundation* (2002) 27 Cal.4th 1097, 1106-1107.)

Plaintiffs rely on *Kim v. The True Church Members of Holy Hill Community Church* (2015) 236 Cal.App.4th 1435 which involved issues similar to those presented here. There, the Court of Appeal ruled that where there is a

hierarchical church, a court must not disturb the decisions of the highest ecclesiastical tribunal within a church. (Id. at p. 1445.) That case, like this one, involves the Presbytery of the WCP. However, there is a major difference between that case and this one. In Kim, it was “undisputed that until April 20, 2013, the Church was a member of the WCP and therefore was subject to the WCP bylaws and BOCO.” (Id. at p. 1442.) Here, by contrast, the parties sharply dispute whether Melita Church was ever a member of the Presbytery of the WCP.

The Court discusses the evidence below. The bottom line, however, is that Plaintiffs have simply not shown that the Melita Church was ever a member of the Presbytery.

As an initial note, there were significant problems with both parties’ evidence and other submissions. Large portions of evidence were not in the English language and not translated; significant amounts of the declarations presented to the Court are hearsay or based on speculation and no foundation; and a significant amount of evidence violates the secondary evidence rule. In terms of the briefing, counsel for Plaintiffs violated California Rules of Court Rule 3.113 by submitting briefing twice as long as allowed and also submitted new evidence on reply, which California law does not allow. (Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1537 [“The general rule of motion practice...is that new evidence is not permitted with reply papers.”])

Counsel for Defendants wasted valuable Court time submitting a significant amount of objections to evidence, without any argument or analysis. The “failure to make a coherent argument in support of the [evidentiary] objection should be viewed as an abandonment of that objection.” (Cole v. Town of Los Gatos (2012) 205 Cal.App.4th 749, 764.)

Moreover, there is an irregularity in the very manner in which Plaintiffs filed this action. Corporations Code Section 9418, subd. (a) states that any action pursuant to that section is to be filed “by any director or member, or by any person who had the right to vote in the election at issue...” Corporations Code Section 9418, subd. (b) states that upon filing of the complaint, “a copy of the complaint to be served upon the corporation and upon the person whose purported election or appointment is questioned...” (emphasis added). The plain text of the Corporations Code Section 9418 makes clear that Melita Church must be a defendant, not a plaintiff. Yet Plaintiffs purported to make Melita Church a plaintiff.

Having reviewed the evidence, the Court determines that Plaintiffs have not shown that the Melita Church was a member of the Presbytery. In addition to the lack of an evidentiary showing by Plaintiffs, the following supports the Court's conclusion:

The Articles of Incorporation for the Church, which was signed by Plaintiff Park and filed with the Secretary of State on September 21, 2021, makes no reference to membership in the Presbytery of the WPC.

There are no bylaws of the Church which provide that the Church is a member of the Presbytery. There are no minutes of any Church board or Session meeting minutes or records that reflect the Church's application to become a member of the Presbytery. There are no records of any meetings of the Congregation of the Church at which the Congregation discussed, voted, or approved any decision to apply for or to become a member of the Presbytery. Since there is no record of corporate governing documents referencing the Presbytery for governance, the Court presumes Melita Church is not part of the Presbytery.

The "Petition for Authorization to Elect Elders" (Exhibit 5 of Plaintiffs' evidence) is not credible. As the alleged author says, "this document is also fabricated...this document is also missing the name of the Secretary who prepared the document and the Secretary's signature. The document is also missing a number in the No. section, which is inconsistent with Plaintiffs' Exhibit 4..." (Kyu Nam Ko Decl., ¶ 7.) Ko also explains that Melita Church was not large enough for the Presbytery to be appointing extra elders at the time. (Ibid.)

Plaintiffs also produce an alleged "Certificate of Membership of Melita Church," which is dated May 3, 2026 and is listed as Exhibit 14 in Plaintiffs' evidence. This document raised significant questions. Plaintiffs claim that Melita Church applied to the Presbytery in 2021, and if so, it makes no sense that there was no certificate of admission to the Presbytery at any point between 2021 and 2026. The Certificate also

lacks any kind of formal marking which indicates it is an official document.
This raises the concern that the certificate was created simply for the filing of this motion.

Plaintiffs argue that the
Presbytery's removal of Reverend Ko was reported to the highest governing body of the WPC held on June 2-4, 2026, and that is enough to find that Melita Church was under the control of the WPC. (Reply, 2:14-16.) Plaintiffs claim that Exhibit 25 substantiates this point, but Exhibit 25 is almost entirely inadmissible because of its lack of a translation.

The Court also declines to find that
Defendants are validly elected or appointed as members or directors of Melita Church. The only evidence that the Defendants were validly elected or appointed is found in Paragraph 5 of Yong Hee Kim's declaration. That paragraph states that the Congregation adopted a resolution on May 24, 2026 setting out a Temporary Congregational Governance Committee to protect the interests of Melita Church. Unfortunately for Defendants, the statement about the Congregation adopting a resolution is inadmissible evidence – the best evidence of the resolution is the resolution itself and Defendants did not provide the resolution itself. There is also no authentication for Exhibit E – which is the minutes from the May 24, 2026 resolution. Yong Hee Kim did not authenticate Exhibit E despite being the person who called the May 24, 2026 meeting to order.

In light of Plaintiffs' failure to
make a persuasive evidentiary showing about the role of the Melita Church within the Presbytery, the Court falls back on established precedent: the selection and termination of clergy or ecclesiastical leadership
should be essentially off-limits to the courts. (Silo, supra, 27 Cal.4th at pp. 1106-1107.)

The Court DENIES the application.

IT IS SO ORDERED.

Dated: July 21,
2026

Joseph

Lipner

Superior

Court Judge